BRIDGES *v.* CALIFORNIA.*

CERTIORARI TO THE SUPREME COURT OF CALIFORNIA.

No. 1. Argued October 18, 21, 1940 (No. 19, 1940 Term). Reargued October 13, 1941.—Decided December 8, 1941.

1. In determining whether punishment for an out-of-court publication concerning a pending case, as a contempt, is consistent with guaranties of the Federal Constitution, the problem in the case of a judgment based upon a particularized statutory declaration of the policy of a State is different from that where the judgment is based upon a common-law concept of a general nature. P. 260.
2. The "clear and present danger" cases, decided by this Court, indicate that the substantive evil likely to result must be extremely serious and the degree of imminence extremely high before utterances can be punished. P. 263.
3. The "clear and present danger" cases do not mark the farthest constitutional boundaries of protected expression; nor do they more than recognize a minimum compulsion of the Bill of Rights. P. 263.
4. The freedom of speech and of the press secured by the First Amendment against abridgment by the United States is similarly secured to all persons by the Fourteenth against abridgment by a State. P. 263, n. 6.
5. The First Amendment's prohibition of "any law abridging the freedom of speech or of the press" must be given the broadest scope that can be countenanced in an orderly society. P. 265.
6. The First Amendment can not be taken as approving all practices in respect to punishment for contempt which prevailed in England at the time of its ratification. P. 265.
7. The "inherent tendency" or "reasonable tendency" of an out-of-court publication to cause disrespect for the judiciary or interfere with the orderly administration of justice in a pending case is not sufficient to establish punishable contempt. P. 272.
8. Upon the facts of this case, *held* that convictions of a newspaper publisher and editor for contempt, based on the publication of editorials commenting upon cases pending in a state court, were vio-

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*Together with No. 3, *Times-Mirror Co. et al.* v. *Superior Court of California in and for the County of Los Angeles*, also on writ of certiorari, 310 U. S. 623, to the Supreme Court of California. Argued October 21, 1940 (No. 64, 1940 Term); reargued October 13, 14, 1941.